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Case Name: *Shabnam Ansari v. Fairchild Imaging, Inc., et al.*

Case No.: 25CV477830

Before the Court is Defendant BAE SYSTEMS, BAE SYSTEMS IMAGING SOLUTIONS's (erroneously sued as "BAE Systems, Inc.") ("Defendant" or "BAE Systems") demurrer to the Complaint filed by Plaintiff Shabnam Ansari ("Plaintiff").

This is an action for wrongful termination. According to the allegations of the Complaint, Plaintiff, who is Iranian, began working for Defendants Fairchild Imaging, Inc. and BAE Systems as a Senior Principal Engineer. (Complaint, ¶ 34.) In 2019, Plaintiff was "aware" that Defendant Doug Teeter, a manager at Fairchild Imaging, Inc., Hamamatsu Corporation and BAE Systems, possessed an animosity towards Iranians due to his negative feelings about his Iranian son-in-law. (*Id.*, ¶¶ 21, 36.) Plaintiff informed Human Resources ("HR") that Teeter was attempting to get her fired due to this animosity, including providing negative performance reviews despite Plaintiff performing in a satisfactory manner; however, HR did nothing to prevent him from harassing and discriminating against her. (*Id.*, ¶¶ 37-38.)

In November 2024, the company underwent a reorganization and changed its name to Fairchild Imaging, Inc., with Plaintiff being placed two levels below Teeter and under the direct supervision of Defendant Carol Zhao, who also began to harass her. (Complaint, ¶¶ 40-41, 43.) HR ignored Plaintiff's complaint about her new assignment and Teeter's harassment but instead of intervening, HR started to investigate her and set up a series of meetings where they harassed her about her job performance. (*Id.*, ¶¶ 44-45.)

On April 9, 2025, Plaintiff was admitted to the ER after suffering an extreme medical emergency and took the next two days off to deal with her condition. (Complaint, ¶ 46.) HR denied Plaintiff's request to remotely attend a meeting with HR that was scheduled for April 14. (*Id.*, ¶ 47.) On April 14, Plaintiff went to her primary care physician and took off April 17-22 to deal with her medical condition. (*Id.*, ¶¶ 48, 50.) However, Plaintiff was informed on April 21, 2025 that she was terminated from her employment. (*Id.*, ¶ 50.) Plaintiff alleges that she suffered from a disability that defendants were aware of and she was terminated because of it as well as her national origin and for requesting medical leave and complaining about the harassment and discrimination she was subjected to. (*Id.*, ¶¶ 51, 119, 164.)

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on October 16, 2025, asserting the following causes of action: (1) national origin discrimination in violation of Government Code § 12940, subd. (a) (The Fair Employment and Housing Act ("FEHA" or the "Act")) (against the corporate defendants); (2) harassment based on national origin and/or perceived national origin in violation of FEHA (against the corporate defendants, Teeter and Zhao); (3) discrimination based on actual and/or perceived disability in violation of FEHA (against corporate defendants); (4) failure to provide reasonable accommodation (against corporate defendants); (5) failure to engage in interactive process (against corporate defendants); (6) retaliation in violation of FEHA (against corporate defendants); (7) violation of California Family Rights Act ("CFRA") (Government Code § 12945.1 et seq.) (against corporate defendants); (8) retaliation in violation of CFRA (against corporate defendants); (9) failure to prevent discrimination and retaliation in violation of FEHA (against corporate

defendants); and (10) wrongful termination in violation of public policy (against corporate defendants).

On February 26, 2026, BAE Systems filed the instant demurrer to each of the claims asserted in the complaint on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the motion.

Defendant's request for judicial notice of the "Complaint of Employment Discrimination" filed by Plaintiff on October 10, 2025 with the California Civil Rights Department ("CRD") (Exhibit 1) is GRANTED. (See Evid. Code, § 452, subds. (c) and (h); *City of Port Hueneme v. Oxnard Harbor Dist.* (2007) 146 Cal.App.4th 511, 513-514 [when ruling on demurrer, court "may also consider material documents referred to in the allegations of the complaint."].)

Defendant first maintains that its demurrer to the first (national origin discrimination), second (harassment based on national origin), third (disability discrimination), fourth (failure to provide reasonable accommodation), fifth (failure to engage in interactive process), sixth (retaliation in violation of FEHA), seventh (violation of CFRA), eighth (retaliation in violation of CFRA), and ninth (failure to prevent discrimination and retaliation in violation of FEHA) causes of action should be sustained because Plaintiff failed to exhaust her administrative remedies as to these claims.

An individual who desires to bring claims under FEHA must first exhaust the administrative remedies provided by the statute, which require him or her to file a complaint with the Department of Fair Employment and Housing.¹ (Gov. Code, § 12960, subd. (c); see *Guzman v. NBA Automotive, Inc* (2021) 68 Cal.App.5th 1109, 1117 (*Guzman*).) The complaint must be in writing, identify the person and employer alleged to have committed the unlawful practice complained of, and "shall set forth the particulars [of the unlawful practice]" (Gov. Code, § 12960, subd. (c).) The receiving agency then decides how to resolve the complaint; if it decides against issuing an accusation, it issues a right-to-sue letter to the aggrieved individual permitting them to initiate a civil action. (*Guzman*, 68 Cal.App.5th at 1117.)

"'Exhausting administrative remedies' refers to this process of notifying the agency of employment problems and giving it the option of using conciliation as a tool. This allows the agency a chance to investigate and solve problems short of court." (*Kuigoua v. Department of Veterans Affairs* (2024) 101 Cal.App.5th 499, 507 (*Kuigoua*).) "The crucial exhaustion test is this: employees satisfy the administrative exhaustion requirement if their claims are like, and reasonably related to, the claims they stated in their administrative filing. If an investigation of what was charged in the administrative complaint would *necessarily* uncover other incidents that were not charged, plaintiffs can include the latter incidents in their court action." (*Id.* at 507-508, internal citations omitted.)

When exhaustion of administrative remedies is a necessary element of cause of action, as it is for claims brought under FEHA, failure to plead facts establishing exhaustion can be

¹ If a CRFA claim is brought alongside a FEHA claim, the CFRA claim may be subject to exhaustion requirement if it is intertwined with the FEHA claim. (Cal. Code Regs., tit. 2, § 14051, subd. (c).)

grounds for a demurrer. (See *Gupta v. Stanford University* (2004) 124 Cal.App.4th 407, 411.) “The scope of the written administrative charge defines the permissible scope of the subsequent civil action.” (*Rodriguez v. Airborne Express* (2001) 265 F.3d 890, 897, citing *Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1121-1123.) “Allegations in the civil complaint that fall outside of the scope of the administrative charge are barred for failure to exhaust.” (*Ibid.*) The requirements pertaining to administrative exhaustion are to “be construed liberally for the accomplishment of the purposes [of FEHA].” (Gov. Code, § 12993, subd. (a).)

Defendant argues that Plaintiff failed to exhaust her administrative remedies with respect to these causes of action because her administrative complaint fails to set forth *any* factual details supporting her claims which are sufficient to put Defendant on notice of them, with the complaint consisting only of “vague and conclusory allegations.” This complaint, Defendant maintains, does not: (1) describe the alleged acts of discrimination and retaliation she allegedly experienced, including identifying individuals who engaged in the alleged conduct; (2) identify the dates each alleged act of discrimination and retaliation occurred; and (3) identify the type of protected activity in which she allegedly engaged. These details, Defendant continues, are required to exhaust administrative remedies under FEHA.

Plaintiff maintains that her CRD complaint is sufficient, insisting that she has satisfied the requisite level of specificity, i.e., setting forth “who, what, when and why,” but as Defendant argues, these assertions are belied by the plain language of the complaint, which is *wholly* devoid of specific facts and alleges in conclusory, boilerplate fashion that Plaintiff experienced unlawful discrimination, harassment and retaliation. Plaintiff did not make any specific allegations about discriminating or harassing conduct that she was the recipient of by Teeter in 2019, and the only date of a purportedly adverse action suffered by her that Plaintiff raised in the Complaint were the adverse actions that allegedly took place “on or about April 21, 2025.” (RJN, Exhibit 1.) Plaintiff does not describe with *any* detail harassing, discriminatory or retaliatory conduct, simply using these terms with no accompanying facts, and she does not identify the individuals who allegedly engaged in specific unlawful conduct. Critically, the purpose of the DFEH complaint “is to supply fair notice of the *facts* sufficient to permit investigation.” (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 630.) Accordingly, the complaint must “identify[] with specificity the discrimination alleged and *the facts supporting it*” (*Ibid.* [disapprove on other grounds].) Plaintiff simply did not “set forth the particulars” of Defendant’s alleged unlawful conduct in her administrative complaint as required under FEHA. (Gov. Code, § 12960, subd. (d).)

Consequently, the Court finds that Plaintiff failed to exhaust her administrative remedies and Defendant’s demurrer to the first, second, third, fourth, fifth, sixth, seventh, eighth and ninth causes of action on the ground of failure to state sufficient facts is SUSTAINED WITHOUT LEAVE TO AMEND. (See, e.g., *Foster v. Bank of Am., N.A.* (E.D. Cal. 2014) 2014 U.S. Dist. LEXIS 113278, *13-14 [defendant granted summary judgment based on failure to exhaust administrative remedies where plaintiff’s administrative complaint “merely assert[ed] in conclusory fashion that she experienced unlawful discrimination, harassment and retaliation” based on her age and did not state any facts concerning the defendant’s conduct].)

Given the foregoing, the Court need not address Defendant’s arguments concerning the timeliness of the first and second causes of action, as well whether they state sufficient facts.

The only remaining claim at issue is the tenth for wrongful termination. Defendant maintains that this cause of action should be dismissed because Plaintiff fails to adequately allege that it was her employer in April 2025 when she was terminated, and an employment relationship is required to confer standing under FEHA. While Defendant is correct with regards to what is required to establish FEHA standing, the Court disagrees that Plaintiff has not sufficiently pleaded that it was her employer. Plaintiff alleges that she became “additionally jointly employed” by Hamamatsu around 2024 when it allegedly purchased an “interest” in Fairchild Imaging, Inc. and that all defendants were an integrated enterprise and joint employers of Plaintiff. (Complaint, ¶ 13.) Defendant argues that these allegations are insufficient because Plaintiff fails to plead factual support to establish the four factors required to demonstrate the existence of an “integrated enterprise.” But Defendant cites no authority for the propositions that an integrated enterprise or joint employment need to be pleaded with this level of detail or that Plaintiff cannot establish the requisite standing by simply alleging that Defendant was her employer, and the case they *do* cite which discusses application of the integrated enterprise test (*Laird v. Capital Cities/ABC, Inc.* (1998) 68 Cal.App.4th 727, 737) involved a motion for summary judgment. Consequently, Defendant’s demurrer to the tenth cause of action on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Navarette v. Ford Motor Company et al.*

Case No.: 25CV478535

BACKGROUND

On April 11, 2020, Plaintiff Silvestre C. Navarette (“Plaintiff”) purchased a 2019 Ford F-150, VIN: 1FTEW1E49KKC51547 (“Subject Vehicle”), from Heritage Ford (“Defendant”). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Defendant “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) On October 24, 2025, Plaintiff filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiff brings the sole cause of action for negligent repair against Defendant Heritage Ford.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract (“RISC”). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act (“FAA”) and California Arbitration Act (“CAA”). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p 6:19-22.) The Arbitration Provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, the CAA governs the Arbitration Provision. Code of Civil Procedure section 1281.2 provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to